

WILMA • MULTI-JURISDICTION REFERENCE

Iowa — Expungement Reference Pack

Iowa expunges criminal court records through Chapter 2 of the Rules of Criminal Procedure (Rules 2.80–2.86), adopted January 2021 and effective for applications filed on or after July 1, 2021. Five application forms cover five distinct grounds.

Rules	Forms	Current revision	Effect
Iowa R. Crim. P. 2.80–2.86	Rule 2.86, Forms 1–5	August 2024	Confidential under §22.7

How Iowa expungement works

An expungement makes the court record confidential and exempt from public access under Iowa Code §22.7. The record is not destroyed — it remains accessible by court order, and for dismissals/acquittals the clerk may still release it without a court order to the defendant or to those with deferred-judgment docket access. Applications (and the county attorney’s response) are confidential. The county attorney has 20 days to respond; the court grants if the requirements are met and may hold a hearing. Each form maps to a specific statutory ground.

The five grounds and their forms

FORM	GROUND / STATUTE	KEY REQUIREMENTS
Form 1 Rule 2.80	Dismissals & acquittals — §901C.2	Acquittal of all charges or all charges dismissed; financial obligations satisfied; 180+ days passed (waivable); not NGRI; not found incompetent. Defendant, prosecutor, or court on its own motion.
Form 2 Rule 2.81	Eligible misdemeanor convictions — §901C.3	One per lifetime; 8+ years since conviction; obligations paid; no pending charges; not more than one deferred judgment; DCI criminal-history check (form DCI-77) dated within 30 days; long ineligible-offense list.
Form 3 Rule 2.82	Public intoxication — §123.46	Conviction under §123.46 (or local ordinance); no convictions other than traffic / simple ch. 321 misdemeanors in the 2 years after.
Form 4 Rule 2.82	Possession of alcohol under legal age (PAULA) — §123.47	Conviction under §123.47; same 2-year clean-record requirement as Form 3.

Form 5 Rule 2.82	Certain prostitution cases — §725.1	Conviction under §725.1(1)(a); was under 18 at the time of the act; same 2-year clean-record requirement.
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Form 2 deserves extra care (misdemeanor convictions)

This is the only conviction-expungement that clears an ordinary misdemeanor, and it carries the heaviest requirements:

- **One per lifetime.** A person gets a single §901C.3 expungement ever. With multiple eligible convictions, choosing which to expunge is a strategic decision — the judicial branch keeps a confidential record of prior misdemeanor expungements and checks it before granting.
- **Eight-year wait** from the date of the conviction.
- **DCI records check required.** Attach an official Division of Criminal Investigation Iowa criminal-history check (form DCI-77, release-authorized) dated within the past 30 days.
- **Related cases:** if eligible convictions arose from the same transaction or occurrence, file a copy of the application in each case.
- **Long ineligible list,** including OWI (§321J.2), domestic-abuse assault and related (§708.2A, .11, .12), and a sex offense under §692A.101, among others.

Things that are NOT preconditions or are out of scope

- Court debt is not a precondition for the public-intoxication, PAULA, or prostitution expungements (§123.46(6), 123.47(8), 725.1(1)(c)).
- Section 901C.2 does not apply to a dismissal tied to a deferred judgment under §907.9, and applies only to public offenses (§692.1).
- Appellate records (other than appeals of simple misdemeanors to district court) cannot be expunged.

Filing mechanics

Where to file	In the case where expungement is sought, in the district court for that county.
Service	On the county attorney. eFiling serves automatically; paper filers complete the certification of service.
Signature (Aug 2024 forms)	Check A (self-represented, with a digitized or hand-signed signature) or B (attorney filing after discussing the contents with the defendant).
Response window	County attorney may respond within 20 days; response is confidential.
Multiple related cases	Form 2 and same-transaction cases must be filed in each case number separately.

Revision note: the August 2024 forms replaced the January 2021 originals. The main change is the signature block — the 2024 versions add the explicit self-represented (A) vs attorney (B) election and a digitized-signature option, where the 2021 forms had a single oath-and-signature block. The substantive eligibility items are unchanged. This pack and the companion form replicas follow the August 2024 structure.

Prepared as a plain-language reference for the Wilma knowledge base. Summarizes Iowa R. Crim. P. 2.80–2.86 and the Rule 2.86 forms as of June 2026 and is not legal advice. The one-per-lifetime misdemeanor rule makes Form 2 a strategic decision — verify the current form revision and consult counsel before filing.

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